

OverWatch ELD

Driver Compliance & FMCSA Regulations Guidebook

An in-depth handbook for drivers, owner-operators, fleet managers, dispatchers, safety personnel, and DOT inspection preparation.

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Important notice: This guide is an educational and operational reference for OverWatch ELD users. It is not legal advice and is not a substitute for reading the current FMCSRs, FMCSA guidance, carrier policies, state requirements, or instructions from an authorized safety official.

Table of Contents

1. How to Use This Guide
2. FMCSA and Regulatory Framework
3. Driver Responsibilities
4. Hours of Service Core Rules
5. Duty Status Definitions
6. ELD Basics and Records
7. Roadside DOT Inspection
8. Log Edits, Certification, and Annotations
9. Personal Conveyance and Yard Move
10. Sleeper Berth and Special Cases
11. Malfunctions and Diagnostics
12. Supporting Documents and Retention
13. Violation Prevention
14. Fleet Manager and Dispatcher Guide
15. OverWatch ELD Quick Reference
16. Appendices and Source Links

1. How to Use This Guide

Purpose

This guide is built for daily driver use, onboarding, refresher training, and audit preparation. The goal is to make the rules practical: what to check before a shift, what to do during a roadside inspection, how to avoid common HOS violations, and how OverWatch ELD supports a clean record of duty status.

Drivers should use the quick-reference sections before a trip and the detailed sections when questions arise. Safety managers should use the tables and checklists for coaching and policy reviews.

Simulation and compliance note

OverWatch ELD may be used in ATS/VTC environments and may also model real-world ELD workflows. A device or system is only a real-world compliant ELD if it satisfies the applicable FMCSA technical requirements and is used according to carrier policies and federal regulations.

2. FMCSA and Regulatory Framework

What FMCSA regulates

The Federal Motor Carrier Safety Administration administers federal safety rules for commercial motor vehicles, including driver qualification, vehicle operation, hours of service, inspection, maintenance, and records. Hours-of-service rules are primarily found in 49 CFR Part 395.

Key regulatory parts

Part 390: General applicability and definitions. Part 391: Driver qualification. Part 392: Driving of commercial motor vehicles. Part 393: Parts and accessories necessary for safe operation. Part 395: Hours of service and ELD rules. Part 396: Inspection, repair, and maintenance.

Source-first approach

When the guide and a current regulation differ, the current regulation controls. For official language, check eCFR Part 395 and FMCSA ELD guidance.

3. Driver Responsibilities

Before duty

Confirm that your carrier, vehicle, trailer, shipping document information, and login are correct. Review your previous days, check remaining drive/shift/cycle time, and verify that unassigned driving, pending edits, and uncertified logs have been resolved.

During duty

Keep duty status current, add remarks for unusual events, monitor HOS clocks, and avoid driving when your available time is insufficient. Driving time is generally recorded automatically when the vehicle is moving under ELD rules.

End of duty

Review the full day, correct missing information, annotate edits, certify the log, and retain supporting documents as required by carrier policy.

4. Hours of Service Core Rules

Property-carrying driver summary

The most common property-carrying HOS limits are the 11-hour driving limit, 14-hour duty window, 30-minute break requirement, and 60/70-hour weekly limits. Specific exceptions, short-haul rules, and special operations may change how these apply.

11-hour driving limit

A property-carrying driver may not drive beyond the allowed driving limit after coming on duty following 10 consecutive hours off duty. Track actual driving time separately from on-duty-not-driving time.

14-hour duty window

The 14-hour clock generally starts when the driver comes on duty after a qualifying off-duty period. Breaks may stop you from driving while they occur, but ordinary off-duty breaks do not reset the 14-hour window unless they satisfy a rule such as a qualifying split sleeper period.

30-minute break

A driver generally needs a qualifying break after 8 cumulative hours of driving time without at least a 30-minute interruption. The break can be satisfied by certain non-driving statuses, depending on the current rule and operation.

60/70-hour limits

The weekly limit restricts on-duty time across 7 or 8 consecutive days. Recap time returns as older on-duty time rolls out of the calculation, or through a qualifying restart when applicable.

Rule	Common property-carrying summary	Practical check
11-hour driving	Maximum driving time after qualifying off duty	Do not drive after drive clock reaches zero
14-hour window	Duty window after coming on duty	Breaks do not automatically reset the window
30-minute break	Required after specified cumulative driving without qualifying interruption	Qualify for interruption
60/70-hour	On-duty limit across 7/8 days	Review recap before dispatch

5. Duty Status Definitions

Off duty

Use Off Duty only when relieved from work and free to pursue personal activities. Off Duty should not be used for work tasks, loading supervision, dispatch obligations, or vehicle maintenance.

Sleeper berth

Use Sleeper Berth only when resting in the sleeper berth. Sleeper time may be relevant to split sleeper calculations, so accuracy matters.

Driving

Driving is time spent at the driving controls of a commercial motor vehicle in operation. ELDs normally record this automatically. Do not manually convert legitimate automatically recorded driving time to hide movement.

On duty not driving

Use On Duty Not Driving for work activities such as fueling, inspections, loading, unloading, waiting while responsible for the vehicle or load, paperwork, maintenance, and meetings.

6. ELD Basics and Records

What an ELD records

An ELD is technology that automatically records driving time and facilitates accurate HOS records. ELD records may include driver identification, motor carrier, vehicle, duty status, date, time, location, engine hours, odometer, edits, annotations, and diagnostic or malfunction events.

Display and transfer

At roadside, a driver must be able to present logs and transfer required data through supported methods. FMCSA guidance describes telematics options such as web services/email and local options such as USB/Bluetooth, depending on the device.

OverWatch ELD workflow

Use Inspection Mode or Documents to review logs, export records, and access this guidebook. Keep the app, telemetry service, and driver profile configured before a trip.

7. Roadside DOT Inspection

Driver behavior

Stop safely, remain professional, provide credentials, and follow the officer instructions. Do not argue about the device at the roadside. If a transfer fails, document the failure and use the display or alternate method if available.

Recommended sequence

1. Open OverWatch ELD. 2. Navigate to Inspection or Documents. 3. Show current duty status and recap. 4. Export the requested logs. 5. Provide supporting documents if requested. 6. Add a note after the inspection if anything unusual happened.

Inspection readiness checklist

Current day and prior days visible; driver name and carrier information correct; unidentified driving reviewed; logs certified; malfunctions/diagnostics addressed; supporting documents available.

Inspection step	Driver action
Prepare	Park safely, gather credentials, open ELD
Present	Show current and prior logs as requested
Transfer	Use configured transfer method or display/printout workflow
Document	Add post-inspection notes and save any report

8. Log Edits, Certification, and Annotations

Edit principles

Edits should correct inaccurate records, not rewrite history. The driver and carrier must preserve the audit trail. Each edit should have a clear annotation explaining why the correction is valid.

Certification

A driver should review and certify logs after confirming they are accurate. Missing certifications are a common form-and-manner problem and can create audit exposure.

Unassigned driving

Unassigned driving should be reviewed and assigned to the correct driver when appropriate. If it does not belong to the driver, reject it according to carrier procedure with a clear annotation.

9. Personal Conveyance and Yard Move

Personal conveyance

Personal Conveyance is off-duty movement for personal reasons. It should not be used to advance a load, reposition closer to pickup/delivery, improve carrier operations, or avoid HOS limits. When in doubt, ask your safety manager before moving.

Yard move

Yard Move is on-duty movement in a qualifying yard or similar location under carrier policy. It is not a shortcut for public-road driving. Always annotate the reason and location.

Decision test

Ask: Am I relieved from work? Is this movement purely personal? Does it advance the load or carrier business? Is the location a yard? Would the explanation make sense to a DOT officer?

10. Sleeper Berth and Special Cases

Split sleeper concept

Certain sleeper/off-duty combinations may allow a driver to split the required off-duty period and exclude qualifying rest from the 14-hour calculation. Because mistakes are common, verify clocks carefully before driving.

Adverse driving conditions

Adverse conditions are unexpected conditions that could not reasonably be known before dispatch or departure. Ordinary traffic, poor planning, or predictable weather usually do not qualify. Add clear remarks when claiming any exception.

Short-haul and exemptions

Some operations qualify for exceptions that change logging or HOS requirements. Drivers should not assume an exception applies unless the carrier has confirmed it and trained them on its conditions.

11. Malfunctions and Diagnostics

Common events

Power compliance, engine synchronization, timing, positioning, data recording, data transfer, and missing required data can trigger malfunctions or diagnostic events.

Driver response

Notify the carrier, reconstruct records if required, carry paper logs when required by regulation or policy, and do not ignore persistent diagnostics.

Carrier response

Track the event, repair or replace the device within the required time when applicable, keep records, and coach drivers on temporary logging procedures.

12. Supporting Documents and Retention

Typical documents

Bills of lading, dispatch records, fuel receipts, scale tickets, toll records, maintenance records, payroll records, inspection reports, and electronic communications can support a log audit.

Best practice

Match documents to log events: fuel should normally align with on-duty time; loading/unloading should align with on-duty time; hotel or meal receipts may support off-duty or personal conveyance decisions.

Document quality

Keep documents legible, complete, dated, and associated with the correct driver, vehicle, and load.

13. Violation Prevention

Common preventable issues

Driving after 11 hours, driving after the 14-hour window, missing a qualifying 30-minute break, exceeding 60/70-hour limits, false duty status, uncertified logs, missing annotations, and unresolved malfunctions.

Planning method

Before accepting a dispatch, calculate available drive time, the 14-hour window, break needs, pickup/delivery appointment times, fueling, parking, weather, and contingency time.

Coaching method

Review one issue at a time. Use facts from logs and supporting documents. Ask what decision point caused the violation and what rule or tool would prevent recurrence.

Risk	Prevention
Over hours	Pre-trip time calculation and dispatch review
Missing break	Alert before 8 cumulative driving hours
Wrong status	Prompt status changes at fuel, load, unload, rest
Uncertified logs	End-of-day certification checklist
Bad PC/YM use	Company policy plus required annotations

14. Fleet Manager and Dispatcher Guide

Dispatch safety screen

Before dispatch, confirm the driver has enough drive, shift, and cycle time. Check pending edits, diagnostics, truck assignment, current status, and route feasibility.

Audit routine

Daily: review violations and uncertified logs. Weekly: review recap, edits, and supporting documents. Monthly: sample logs against fuel, toll, BOL, and dispatch records.

Policy alignment

Write clear company policies for PC, yard move, adverse conditions, log edits, personal use, inspections, and malfunction response. OverWatch ELD should reflect those policies in labels and training.

15. OverWatch ELD Quick Reference

Documents page

Open the Documents tab to access BOL, Readme, About, and this FMCSA Guidebook. The guidebook opens as a PDF from the local app output.

Website access

The companion website includes a Guidebook page with a direct PDF download link. Use it for onboarding, driver self-study, and company safety portals.

DOT export note

Use DOT export tools for logs. Use this guidebook as training/reference material; it is not itself a log export.

Appendix A - Quick Roadside Card

- Know where Inspection Mode and Documents are located.
- Show current status and prior required logs.
- Transfer records using configured method when requested.
- Keep device charged and visible.
- Annotate malfunctions, transfer failures, and unusual events.
- Remain calm and professional.

Appendix B - Official Reference Links

Primary sources used while preparing this guide include: 49 CFR Part 395 on eCFR; FMCSA ELD general information; FMCSA ELD data transfer guidance; 49 CFR 395.30 on edits/certification; 49 CFR 395.34 on malfunctions and diagnostics. Drivers and carriers should verify current requirements from official sources before relying on any summary.

Topic	Official source
49 CFR Part 395	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-III/subchapter-B/part-395
ELD general information	https://www.fmcsa.dot.gov/hours-service/elds/general-information-about-eld-rule
ELD data transfer	https://www.fmcsa.dot.gov/hours-service/elds/eld-data-transfer
ELD FAQs	https://eld.fmcsa.dot.gov/FAQ/ShowAll
Driver RODS	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-III/subchapter-B/part-395/subpart-A/section-395.8
ELD edits/certification	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-III/subchapter-B/part-395/subpart-B/section-395.30
ELD malfunctions	https://www.ecfr.gov/current/title-49/subtitle-B/chapter-III/subchapter-B/part-395/subpart-B/section-395.34

Appendix C - Training Sign-Off

Driver name	Date	Trainer	Signature